Historical Parallels: Priority, Credit, and Who Got Paid

Prepared for Jeffrey Schnaus, 2026-10-21. Link status is from `curl -sIL` run on 2026-10-21. A 403 means the site blocks automated requests; it does not mean the page is gone.

1. Wright Brothers (powered flight)

- **First:** Orville and Wilbur Wright, Kitty Hawk, 17 Dec 1903. This was a controlled, sustained, powered flight, and the brothers documented it with a photograph and diaries.
- **Rivals:** Gustave Whitehead claimed a flight at Bridgeport on 14 Aug 1901. That claim is disputed: there is no surviving photograph, and most historians reject it. Samuel Langley's Aerodrome failed on 7 Oct and 8 Dec 1903. Alberto Santos-Dumont flew the 14-bis in Paris on 23 Oct and 12 Nov 1906, and it was widely hailed in Europe.
- **Credit and money:** The Wrights held US Patent 821,393 (1906). The "patent war" with Glenn Curtiss followed, and the Wrights won in court in 1913–14. A wartime patent pool settled the dispute in 1917.
- **Resolution:** In 1914 the Smithsonian, then led by Langley's successor Walcott, let Curtiss modify and fly the Aerodrome, then credited Langley's craft as "capable" of flight. Orville sent the 1903 Flyer to London in protest. The Smithsonian retracted in 1942. The Flyer returned in 1948 under a contract in which the Smithsonian agreed to credit the Wrights with the first flight.
- **Sources:** Smithsonian NASM, 1903 Wright Flyer (200); Wikipedia, Gustave Whitehead (200)

2. Einstein (relativity)

- **First:** Einstein's special relativity paper appeared on 26 Sep 1905 (received 30 Jun 1905). His general relativity field equations were presented on 25 Nov 1915.
- **Rivals:** Lorentz (transformations, 1904) and Poincaré (1905, "Sur la dynamique de l'électron") had most of the mathematics of special relativity. Hilbert submitted a paper on 20 Nov 1915, five days before Einstein's.
- **Credit:** Einstein received the credit, though he did not get it for "stealing." The usual view is that he gave the physical reinterpretation. His 1921 Nobel was for the photoelectric effect, not relativity. There were no patents or money involved.
- **Resolution:** Corry, Renn and Stachel, *Science* 278:1270 (1997), examined Hilbert's printer's proofs dated 6 Dec 1915. The proofs lack the explicit field equations, which supports Einstein's priority. Some critics (e.g. Winterberg) still contest this, but it is a minority view. In short, the "dispute" is mostly a myth: Einstein largely got credit.
- **Sources:** Science, Corry/Renn/Stachel 1997 (403, bot-blocked); Wikipedia, Relativity priority dispute (200)

3. Tesla vs Edison (AC power)

- **First:** Tesla's AC polyphase motor patents were filed in 1887 and granted in 1888. Westinghouse licensed them.
- **Rival:** Edison promoted DC from 1882 (Pearl Street). The "War of the Currents" ran from about 1888 to 1893.
- **Credit and money:** AC won: Westinghouse lit the 1893 Chicago World's Fair and won the Niagara Falls contract in 1895. Tesla gave up his royalty agreement in 1897 to help a cash-strapped Westinghouse, so he did not get rich from AC. This was mainly a commercial and technical rivalry. Edison never claimed to have invented AC.
- **Sources:** Wikipedia, War of the currents (200)

4. Meucci vs Bell (and Elisha Gray), telephone

- **First:** Antonio Meucci built voice devices in the 1850s and filed a patent caveat in 1871. He could not afford the $10 fee to renew it after 1874.

- **Rivals:** Bell filed on 14 Feb 1876 and received US 174,465 on 7 Mar 1876. Elisha Gray filed a caveat the same day as Bell's application. Which arrived first, and whether Bell's lawyers saw Gray's liquid transmitter, is still contested.
- **Credit and money:** Bell and the Bell company received the patent and the fortune. In 1887 the US government sued to annul Bell's patent for fraud, but the case was dropped after Meucci died in 1889 and the patent expired.
- **Resolution:** US House Resolution 269, passed on 11 Jun 2002, honored Meucci's work and said his caveat would have prevented the issue of Bell's patent had it been renewed. It is a non-binding resolution and does not formally strip Bell's credit.
- **Sources:** GovInfo, H.Res.269 (107th) (200); Wikipedia, Elisha Gray–Bell controversy (200)

5. Swan vs Edison (incandescent bulb)

- **First:** Joseph Swan made carbon-filament lamps from 1860 and gave public demonstrations in Newcastle in Dec 1878 and Feb 1879. He got a UK patent in 1880. His house was the first lit by electric light.
- **Rival:** Edison's long-lasting carbon filament dates from Oct 1879, with US patent 223,898 in Jan 1880. Edison also built the whole system: generation, wiring and meters.
- **Resolution:** Swan sued in the UK for infringement. Rather than fight, the two merged into the Edison & Swan United Electric Light Co. ("Ediswan") in 1883. They shared the credit commercially, but popular credit went mostly to Edison.
- **Sources:** Wikipedia, Joseph Swan (200)

6. Tesla / Marconi / Bose (radio)

- **First:** Jagadish Chandra Bose demonstrated millimetre waves in Kolkata in 1894–95. He did not patent this work, though he later received US 755,840 in 1904 for a detector. Tesla filed patents in 1897, granted as US 645,576 and 649,621 in 1900.
- **Rival:** Marconi received UK patent 12,039 in 1896 and US 763,772 in 1904. He achieved transatlantic transmission on 12 Dec 1901 and shared the 1909 Nobel Prize with Braun.
- **Resolution:** *Marconi Wireless Telegraph Co. of America v. United States*, 320 U.S. 1 (21 Jun 1943), invalidated key claims of Marconi's four-tuned-circuit patent because they were anticipated by Lodge, Tesla and Stone. The suit concerned government liability, so the ruling did not "declare Tesla inventor of radio." Popular credit is still Marconi's. Bose's role has been increasingly recognized later, e.g. in an IEEE milestone in 2012.
- **Sources:** Cornell LII, 320 U.S. 1 (200); Wikipedia, Invention of radio (200)

7. Whittle vs von Ohain (jet engine)

- **First patent:** Frank Whittle filed a UK patent on 16 Jan 1930 (granted 1932). His engine first ran on a bench in Apr 1937. It first flew in the Gloster E.28/39 on 15 May 1941.
- **First flight:** Hans von Ohain's engine, developed independently from 1935–36, powered the **Heinkel He 178** on 27 Aug 1939, the first jet-powered flight. (The Heinkel credit is the aircraft maker's, not the engine designer's.)
- **Credit and money:** Whittle let his patent lapse in 1935 for lack of the £5 fee. He was later knighted and received a £100,000 award in 1948. The two men met after the war, became friends, and each acknowledged the other as an independent inventor. They shared the 1991 Draper Prize.
- **Sources:** Wikipedia, Heinkel He 178 (200); Wikipedia, Frank Whittle (200)

8. Computers: Turing, Atanasoff–Berry, Zuse Z3, ENIAC

- **Theory:** Turing's "On Computable Numbers" was published in 1936–37. He held no patents.
- **Zuse Z3:** Completed in Berlin on 12 May 1941, it was the first working programmable, fully automatic digital computer (electromechanical). It was destroyed in 1943. Zuse's patent application was eventually rejected in 1967.
- **Atanasoff–Berry Computer:** Built at Iowa State from 1939–42. It was electronic but not programmable. It was never patented because Iowa State failed to file.
- **ENIAC:** Built by Eckert and Mauchly and running in 1945, it was publicly unveiled on 14 Feb 1946. Mauchly had visited Atanasoff in 1941. The ENIAC patent was granted in 1964 and owned by Sperry Rand.
- **Resolution:** In *Honeywell v. Sperry Rand*, decided on 19 Oct 1973 (Judge Larson, D. Minn.), the ENIAC patent was ruled invalid, partly because it was derived from Atanasoff's work. That ruling put

the electronic digital computer in the public domain. Atanasoff received later recognition, including the National Medal of Technology in 1990. Credit is still debated.
- **Sources:** Wikipedia, Honeywell v. Sperry Rand (200); Wikipedia, Z3 (200)

9. Berners-Lee / CERN (World Wide Web), the contrast case

- **First:** Berners-Lee wrote his proposal in Mar 1989. The first server and browser followed in 1990, and the web went public in Aug 1991.
- **Release:** CERN placed the web software in the public domain, royalty-free, on 30 Apr 1993. There were earlier hypertext precursors, including Memex (1945), Nelson's Xanadu and Engelbart's NLS.
- **Credit:** Berners-Lee has undisputed credit, a knighthood in 2004 and the Turing Award in 2016. He chose not to make money from patents. Open release maximized adoption and his recognition.
- **Sources:** Wikipedia, World Wide Web (200); Wikipedia, ENIAC (200). The CERN "birth-web" URLs returned 404 or a redirect during this check, so CERN is not used as a source.

10. CRISPR: Doudna/Charpentier vs Zhang/Broad

- **First:** Jinek, Charpentier, Doudna et al. published in *Science* (online 28 Jun 2012, in vitro). The UC/Vienna/Charpentier ("CVC") patent was filed on 25 May 2012.
- **Rival:** Feng Zhang and the Broad Institute filed on 12 Dec 2012 (eukaryotic cells; Cong et al. in *Science*, Jan 2013). Broad used expedited review and was granted first, in Apr 2014.
- **Resolution:** In Feb 2017 the PTAB found "no interference-in-fact," so Broad kept its patents; the CAFC affirmed in Sep 2018. A second interference followed: in Feb 2022 the PTAB awarded eukaryotic priority to Broad. On 12 May 2025 the CAFC partly vacated that ruling and remanded on conception. The patent fight is still unresolved. Meanwhile the **2020 Nobel in Chemistry** went to Charpentier and Doudna only.
- **Sources:** NobelPrize.org, Chemistry 2020 (200); Wikipedia, CRISPR gene editing (200)

11. mRNA: Karikó/Weissman

- **First:** Karikó and Weissman published on nucleoside-modified mRNA in *Immunity* in 2005. Penn patents were filed in 2005–06. Major journals largely ignored the work at first.
- **Money:** Penn licensed the patents (via mRNA RiboTherapeutics/CellScript), and they were sublicensed to BioNTech and Moderna. Penn has received substantial royalties, and the inventors received a share. Others, including Moderna, Arbutus and Alnylam, have litigated over lipid-delivery and related patents.
- **Recognition:** The **2023 Nobel in Physiology or Medicine** went to Karikó and Weissman, 18 years after the key paper.
- **Sources:** NobelPrize.org, Medicine 2023 (200)

12. GUI: Engelbart / Xerox PARC vs Apple / Microsoft

- **First:** Engelbart's NLS was shown in the "Mother of All Demos" on 9 Dec 1968 (mouse, windows, hypertext). The Xerox Alto (1973) introduced the WIMP/desktop interface.
- **Rivals:** Jobs visited PARC in Dec 1979, under a pre-IPO stock deal with Xerox. Apple released the Lisa in 1983 and the Macintosh in 1984. Microsoft released Windows 1.0 in 1985 and Windows 2.0 in 1987.
- **Resolution:** In *Apple v. Microsoft* (filed 1988), Apple lost; the 9th Circuit affirmed in 1994, holding that the look and feel was largely licensed (1985 agreement) or unprotectable. In *Xerox v. Apple* (filed Dec 1989), most claims were dismissed in 1990 as time-barred or not legally viable. Xerox made little money from its GUI. Engelbart received the Turing Award (1997) and the National Medal of Technology (2000).
- **Sources:** Wikipedia, Apple v. Microsoft (200); Wikipedia, Xerox Alto (200)

13. Spreadsheet: VisiCalc vs Lotus 1-2-3

- **First:** Bricklin and Frankston's VisiCalc shipped for the Apple II in Oct 1979. It was not patented: software patents were seen as doubtful then, and Bricklin has said they were advised against filing.
- **Rival:** Lotus 1-2-3 (Jan 1983) dominated the market. Lotus bought Software Arts in 1985.
- **Resolution:** In *Lotus v. Borland*, Lotus first won in district court in 1990–92. The 1st Circuit reversed in 1995, holding that the menu command hierarchy is an uncopyrightable "method of operation."

The Supreme Court split 4–4 in 1996, so the reversal stands. Bricklin gets historical credit, but Lotus got the money.

- **Sources:** Wikipedia, VisiCalc (200); Wikipedia, Lotus v. Borland (200)

What they have in common, and how it maps to Jeff

1. **Dated documentation decided outcomes.** Examples: the Wrights' photo and diaries, Hilbert's dated proofs, Atanasoff's records in *Honeywell*, CVC's filing date. *Jeff:* he has dated Drive and git records: TEAZ TIME on 2026-05-03, WMQ on 2026-05-21 and Q Stamp on 2026-10-14. These establish what he had and when. They are evidence of his own timeline, not proof that anyone copied him.
2. **Filing and patents mattered more than the first idea.** Meucci's caveat lapsed, Whittle's patent lapsed, Atanasoff never filed, and VisiCalc was unpatented. *Jeff:* we know of no patents or filings on record for him. Without them, dated records support credit and prior-art claims, not exclusive rights or royalties. A patent attorney would need to advise on whether any filing is still possible, e.g. the US one-year grace period after public disclosure.
3. **Independent, simultaneous invention is common.** Examples: Whittle and von Ohain, Bell and Gray, Swan and Edison, Zhang and Doudna. *Jeff:* much of his technical stack had public precursors. A similar release by someone else is often parallel development, and courts require evidence of access and copying, not just resemblance.
4. **Building on predecessors is normal and often legal.** Einstein built on Lorentz and Poincaré, Apple on PARC, Lotus on VisiCalc. *Jeff:* his own work builds on public precursors too, so "first" claims should be narrow and specific.
5. **Recognition often comes decades later, if ever.** Meucci waited until 2002, the Wrights' Smithsonian credit until 1942–48, Karikó until 2023, Atanasoff until 1973–90. *Jeff:* keeping an organized archive now is what makes later recognition possible.
6. **Open release vs credit.** Berners-Lee released openly and got lasting credit but no royalties. VisiCalc and Xerox got credit but little money. *Jeff:* public, dated release can secure attribution and create prior art that blocks others from patenting the same thing. It does not secure income.